

RESOLUTION

No. 23-333Date of Adoption JUL 06 2023

Approved as to Form and Legality

Factual content certified by

CITY ATTORNEY

Adam E. Cruz, Business Administrator

Councilman/woman Christopher Edwards presents the following Resolution:

**RESOLUTION AUTHORIZING THE EXECUTION OF THE COLLECTIVE
BARGAINING AGREEMENT BETWEEN THE CITY OF TRENTON AND THE
POLICE BENEVOLENT ASSOCIATION (PBA), LOCAL 11**

WHEREAS, the City of Trenton and Police Benevolent Association (PBA), local 11 are parties to a Collective Bargaining Agreement which expired on December 31, 2018; and

WHEREAS, the City of Trenton and Police Benevolent Association, Local 11 have negotiated a successor Collective Bargaining Agreement for a term of January 1, 2019 through December 31, 2024; and

WHEREAS, the terms of the Collective Bargaining Agreement are set forth in the attached Memorandum of Agreement.

NOW, THEREFORE, IT IS RESOLVED, by the City Council of the City of Trenton that the Mayor is hereby authorized to execute a Collective Bargaining Agreement with the Police Benevolent Association, Local 11 consistent with the terms of the Memorandum of Agreement attached hereto.

	Aye	Nay	Abstain	Absent		Aye	Nay	Abstain	Absent		Aye	Nay	Abstain	Absent
EDWARDS	✓				GONZALEZ	✓				FRISBY	✓			
FELICIANO	✓				HARRISON	✓								
FIGUEROA	✓				WILLIAMS	✓								
KETTENBURG	✓													

This Resolution was adopted at a Meeting of the City Council of the City of Trenton on

JUL 06 2023

President of Council

City Clerk

AGREEMENT
BETWEEN
CITY OF TRENTON
And
NEW JERSEY STATE POLICEMEN'S BENEVOLENT ASSOCIATION
LOCAL NO. 11
January 1, 2019 through December 31, 2023

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THIS AGREEMENT, made this 6th day of July 2023, by and between: CITY OF TRENTON, a municipality in the County of Mercer, State of New Jersey, hereinafter referred to as "Employer,"

and:

NEW JERSEY STATE POLICEMEN'S BENEVOLENT ASSOCIATION, INC., LOCAL NO. 11, TRENTON, NEW JERSEY, hereinafter referred to as the "Association,"

WITNESSETH:

WHEREAS, the parties hereto have carried on collective bargaining negotiations for the purpose of developing and concluding a general agreement covering wages, hours of work and other conditions of employment of uniformed and non-uniformed officers, police officers and police officers detectives (hereinafter sometimes collectively referred to as "Members" or "Employees") of the Police Department of the City of Trenton (Employer);

NOW, THEREFORE, in consideration of these premises and mutual agreement herein contained, the parties hereto agree with each other with respect to the employees of the Employer, as hereinafter defined, recognized as being represented by the association as follows:

ARTICLE I
RECOGNITION AND SCOPE OF AGREEMENT

Section 1.01

The Employer hereby recognizes the Association as the sole and exclusive representative of all the employees in the bargaining unit as defined in Article I, Section 1.02, herein for the purposed of collective bargaining, settlement of grievance and all activities and processes relative thereto.

Section 1.02

The bargaining unit shall consist of all uniformed and non-uniformed police officers and police officer detectives of the Police Department of the City of Trenton, New Jersey, now employed or hereafter employed.

Section 1.03

This agreement shall govern all wages, hours and other conditions of employment as hereinafter set forth.

Section 1.04

This agreement shall be binding upon the parties hereto and their successors, as permitted by law.

ARTICLE II

COLLECTIVE BARGAINING PROCEDURE

Section 2.01

Collective bargaining with respect to rates of pay, hours of work or other conditions of employment shall be conducted by the duly authorized bargaining agent of each of the parties. Unless otherwise designated, the Mayor of the Employer, or his designee or designees, and the President of the Association, or his designee or designees, shall be the respective bargaining agents for the parties.

Section 2.02

Collective bargaining meetings shall be held at times and places mutually convenient at the request of either party.

Section 2.03

Employees of the Employer who may be designated by the Association to participate in collective bargaining meetings called for the purpose of the negotiation of a collective bargaining agreement will be excused from their work assignments, provided, however, that no more than four (4) employees shall be excused for any bargaining session.

Section 2.04

The City will provide the PBA with a complete draft contract book for review within 90 days of ratification of the parties' negotiations settlement.

Section 2.05

The City has commissioned a study for effective operation of the police department. The City agrees that negotiations for the 2024 contract shall start at the conclusion of the study or by the end of 2023, whichever is later. The City agrees that the salaries for 2024 shall be at least 2% across the board for the PBA based on the current salary guides, but shall not go into effect or be retroactive until the 2024 contract negotiations conclude.

ARTICLE III

CONDUCTING UNION BUSINESS ON EMPLOYER'S TIME

Section 3.01

The Employer shall permit members of the Association Grievance Committee (not to exceed three (3)) to conduct the business of the Committee, which consist of conferring with employees and representative of the Employer on specific grievance in accordance with the grievance procedures set forth herein, during the duty hours of the members without loss of pay, provided the conduct of said business shall not diminish the effectiveness of the Police Department or require the recall of off-duty police officers to bring the Department to its proper effectiveness.

The City and the Association hereby agree that officers of the Association will have a total (pool) of thirty (30) days off with pay (straight time) for the conduct of legitimate union business in each calendar year, not including the time off with pay granted to the Delegate to the State P.B. A., or other P.B.A. representative as provided for under existing State law. Verbal reports on the usage of this time for union business and its general purpose must be submitted to the Police Director, or his designee, prior to usage.

Section 3.02

The Employer shall permit members of the Association Negotiating Committee to attend collective bargaining meetings during the duty hours of the members. However, on two (2) members of such Committees shall be permitted to attend such meetings without loss of pay for any period in excess of three (3) meetings on any renegotiation of this contract or any modifications or renewals thereof.

Section 3.03

The Employer agrees to grant the necessary time off without loss of pay to the members of the Association selected as delegates to attend any State or International convention of the New Jersey Police Officers' Benevolent Association as provided under N.J.S.A. 11A:6-10.

Section 3.04

The City shall provide one-fifth or 20% release time to the President of the PBA and the President shall be assigned to the community affairs unit and scheduled Monday through Friday, 08:00 to 16:30. The PBA President shall submit a request to the Police Administration 24 hrs. in advance stating the reason for Union Release, how long and the location.

Section 3.05

The Association Delegate shall be assigned to a day shift during the delegate's term of office and upon request of the Association and consent of the Department, shall be provided with sufficient time to attend Association meetings without loss of regular compensation.

Section 3.06

The City will continue the current practice of providing the PBA with an office in Police Headquarters.

ARTICLE IV

EMPLOYEES RIGHTS

Section 4.01

There shall be no discrimination, interference or coercion by the Employer or any of its agents against the employees represented by the Association because of membership or activity in the Association. The Association shall not intimidate or coerce employees into membership. Neither the Employer nor the Association shall discriminate against any employee because of race, creed, color, or national origin.

Section 4.02

In order to safeguard fundamental rights for law enforcement officers employed by the City of Trenton, it is agreed that:

1. Except when on duty or acting in his official capacity as a law enforcement officer, no law enforcement officer shall be prohibited from engaging in political activity, provided his position as a law enforcement officer is not used in any way whether directly or indirectly, while engaging in said political activities. As employed herein, the term "law enforcement officer" shall mean any member of the Police Department whose primary duties and responsibilities are the enforcement of the laws and regulations of the State of New Jersey and the protection of the life, peace and property of its citizens; and is empowered by State statute to act for the arrest, detention and conviction of persons violating the laws. It is understood that a police officer will not engage in any political activity which requires a signature or donation or any other action which would indicate compliance with the officer's request in the municipality in which he is employed, nor shall he engage in any political activity or hold any public office which would violate statutory or common law of New Jersey.
2. Whenever a law enforcement officer has received notice that he is under formal investigation after receipt of a field Notification of Complaint for alleged malfeasance, misfeasance or nonfeasance of official duty with a view to possible disciplinary action, demotion, dismissal, or criminal charges, the following minimum standards shall apply:

- a. Any formal interrogation of a law enforcement officer whether as a subject of the investigation or as a witness, shall take place at the location designated by the investigatory officer, except it shall not be conducted at the law enforcement officer's home unless the home is specifically involved in the complaint, and preferably when the employee is on duty. A member of the Department shall be compensated for lost time occurring from investigations in accordance with existing Departmental Policy. The questioning of an officer shall be conducted at a reasonable hour in a non-coercive manner, without threat or promise of reward. The questioning shall be of a reasonable duration and rest periods allowed. Time shall be provided for personal necessities, meals and telephone calls as are reasonably necessary. The law enforcement officer shall be entitled to the presence of his counsel or any other one person of his choice at any interrogation in connection with the investigation.
- b. The law enforcement officer being investigated shall be informed at the commencement of any interrogation of the nature of the investigation including whether the officer is a target of the investigation, if known, the statute, rule or regulation allegedly violated, if known, the names and addresses of the complainant, and the identity and the authority of those conducting the investigation. This shall not preclude the employer from subsequently modifying, amending or changing the statute, rule or regulation under which the charges are brought. Also at the commencement of any interrogation of such officer in connection with any such investigation, the officer shall be informed of the identity of all persons present during such interrogation. All questions asked in any such interrogation, whenever practical be, shall be asked by or through a single interrogator.
- c. No formal hearing by means of which a law enforcement officer may be disciplined or penalized may be brought except upon charges signed by the persons making those charges.
- d. The interrogation of the employee concerned shall be recorded mechanically or by written form. "Off the record" questions shall not be permitted. Any recesses called during the interrogation shall be recorded.

- e. If an officer is placed under arrest or is likely to be placed under arrest for a criminal offense, he shall be afforded all constitutional rights and, in addition, he shall be given the following warning prior to the commencement of any interrogation: "I am advising you that you are being questioned as part of an official investigation of the Police Department. You will be asked questions specifically directed and narrowly related to the performance of your official duties. You are entitled to all the rights and privileges guaranteed by the laws of the State of New Jersey, the Constitution of this State and the Constitution of the United States, including the right not to be compelled to incriminate yourself and the right to have legal counsel present at each and every stage of this investigation. I further advise you that if you refuse to testify or to answer questions relating to the performance of your official duties, you will be subject to Departmental charges which could result in your dismissal from the Police Department. If you do answer questions, neither your statements nor any information or evidence which is gained by reason of such statements can be used against you in any subsequent criminal proceeding. However, these statements may be used against you in relation to subsequent Departmental charges."
 - f. It is understood that the provisions of paragraph two above shall not preclude initial or preliminary inquiries by the employer and shall only apply upon the commencement of a formal investigation or the filing of a complaint.
3. All investigations against law enforcement officers shall be conducted expeditiously. At least every two (2) months after the commencement of such investigation, as determined by the date that the notification of complaint is served upon the officer, the officer, if he so requests, is to be informed of the status of the pending investigation. If charges are to be brought against the officer, they should be brought as promptly as possible to ensure that no unnecessary delay occurs which might prejudice the officer's defense and unless unusual circumstances exist, no officer should be prosecuted by the department for the alleged infraction of any rule if more than 45 days transpire between the date the Police Director or appropriate Captain had knowledge of the alleged infraction by virtue of information that is normally transmitted to him by routine administrative process and the-

service of the preliminary notice of disciplinary action. NOTE: N.J.S.A. 40A:14-147 (AS OF 1988) provides for additional requirements related to filing of disciplinary charges.

4. The Internal Affairs Unit, or other police investigation agencies shall remove from his personnel file all papers, files, reports, notes and copies thereof relating to an investigation of a police officer when the investigation does not result in any disciplinary action or when officer is exonerated. These items, if retained, shall be maintained separate and apart from the personnel file. The officer may on proper notice inspect these materials at the discretion of the Police Director.
5. No law enforcement officer shall be required to disclose, for the purpose of promotion or assignment, any information concerning his property, income, assets, debts, or expenditures or those of any member of such officer's household, except where such information relates directly to the officer's assignment or duties.
6. There shall be no penalty or threat of any penalty for the exercise by the law enforcement officer of his rights under the Bill of Rights.

Section 4.03

Notice of departmental charges when served upon an Association member shall contain a separate sheet of paper with the following notation which must be acknowledged in writing by said member when served, and which acknowledgement shall be maintained by the City in its disciplinary file: "I do _____ do not _____ wish to have my bargaining agent provided with a copy of these charges".

Section 4.04

Written warning slips shall be deleted from an employee's personnel file 180 days from the date of the written warning slip.

ARTICLE V
PAY TREATMENT FOR EXTENDED ILLNESS

Section 5.01

The Employer agrees to pay employees at their regular rate of pay during periods of disability due to illness, injury or recuperation therefrom for a maximum period of one year from the date of such disability, provided such employee is incapable of performing his duties as a police officer and that such disability is established by a competent physician.

Section 5.02

The Employer retains the right to extend this period of payment for disability due to illness or injury beyond one year at its own discretion.

Section 5.03

The Employer may require at any time during the period of such extended disability as described in Section 5.02, above, that the employee be examined by a physician selected by the Employer for such purpose.

Section 5.04

In the event a disagreement arises with respect to the existence or extent of the disability, such issue shall be determined by a physician agreed to by and between both of the parties to this agreement, i.e., the Employer and Association.

Section 5.05

A permanent employee who enters retirement pursuant to the provisions of a State administered or approved retirement system and has to his credit any earned and unused accumulated sick leave, shall be entitled to receive supplemental compensation for such earned and unused accumulated sick leave. The supplemental compensation to be paid shall be computed at the rate of one-half of the eligible employee's daily rate of pay for each day of earned and unused accumulated sick leave, based upon the average annual compensation received during the last year of his employment prior to the effective date of this retirement, provided, however, that no such supplemental compensation payment shall exceed \$20,000.00. This supplemental compensation shall be paid in a lump sum after the effective date of retirement or death, or as may be elected by the employee deferred for one (1) year.

Because of the past performance of the person retiring taking time off in his final year, a clause was built in to prevent this and is as follows:

In the 12 months prior to retirement the following will prevail:

1 st 15 sick days	no penalty
16 to 45 days	50% of daily rate will be deducted from buy back
46 to 60 days	75% of daily rate will be deducted from buy back
61 + days	100% of daily rate will be deducted from buy back

For the purpose of calculating accrued sick time, employees will be deemed to have earned 12 sick days for the first year of service and 15 days per year thereafter. Usage will be based on Police Department records.

Section 5.06

a. Police officers on sick leave, for more than one (1) day, will receive one telephone check at home per the officer's tour of duty, between the hours of 8am and 10pm, except under the following circumstances, when the officer shall receive a minimum of two (2) calls and a maximum of four (4) calls;

- i. The officer is on the sick leave monitor list; or
- ii. The officer has been found guilty of violating the Sick Leave Policy following a departmental hearing.

b. Police officers on sick, for more than one (1) day, as authorized by the Police Director for a non-systemic illness will receive one telephone check at home per day during the officer's tour of duty.

c. Telephone verification will not be required for single use sick days unless the member is listed on the sick leave monitored list, the sick day was a City designated holiday, the sick day was the day proceeding the holiday or the day after the City designated holiday, or the officer has taken more than three (3) single use sick days during the calendar year.

d. With respect to determinations as to whether an injury or illness is systemic or non-systemic for home restriction purposes, officers will submit their supporting paperwork to the Human Resources officer. A determination as to whether the condition is systemic or non-systemic for home restriction purposes will be made within two (2) days.

Section 5.07

Sick leave verification shall be pursuant to revised General Order, Sick Leave Policy and Procedure.

Employees may utilize up to three (3) single use sick days during the course of a calendar year. Employees who are absent one (1) day, nine or fewer instances during a calendar year, will be allowed to return to duty without any medical documentation unless they are on the sick leave monitored list or the sick day was a City designated holiday, day proceeding the holiday or the day after the city designated a holiday, in which event a return to duty slip shall be required.

A sick incident shall consist of leave for a period of two (2) or more consecutive days of sick leave.

Section 5.08

The City may, during the term of this agreement, substitute a disability insurance program for the extended illness benefit provided for in Article V as long as the benefits provided are substantially equal. The disability insurance program will provide that, an employee shall receive full pay from the insurance company for a period of up to one (1) year under the terms of the policy. The disability payments will be done in a manner so as not to affect the employee's pension contributions.

ARTICLE VI
UNION SECURITY – CHECK-OFF

Section 6.01

Insofar as permitted by law, the Employer agrees to deduct from the pay of all employees the Department of Police who are members of the Association initiation fees, dues and assessments as required by the Association Constitution and By-Laws and other Association rules and regulations duly enacted. All such deductions shall be paid over to the properly designated Association official monthly on a regularly recurring basis.

The Union shall indemnify and hold the employer harmless against any and all claims, demands, suits and other forms of liability that may arise out of, or by reason of any action taken or not taken by the Employer in conformance with this provision. The Union shall intervene in and defend any administrative or court litigation concerning this provision.

Section 6.02

Any employee in the Bargaining Unit on the effective date of this Agreement who does not join the Union within (30) days thereafter, any new employee who does not join within ninety (90) days of initial employment within the Unit, and any employee previously employed within the Unit who does not join within ten (10) days of reentry into employment within the Unit shall, as a condition of employment, pay a representation fee to the Union by automatic payroll deduction. The representation fee shall be in an amount equal to eighty-five percent (85%) of the regular union membership dues, fees, and assessments as certified to the Employer by the Union. The Union may revise its certification of the amount of the representation fee at any time to reflect changes in the regular union membership dues, fees and assessments. The Union's entitlement to the representation fee shall continue beyond the termination date of this agreement as long as the Union remains the majority representative of the employees in the Unit, provided that no modification is made in this provision by a successor agreement between the Union and the employer. For the purposes of this provision, employees employed on a ten (10) month basis or who are reappointed from year to year shall be considered to be in continuous employment. The union shall

indemnify and hold the employer harmless against any and all claims, demands, suits and other forms of liability that may arise out of, or by reason of any action taken or not taken by the employer in conformance with this provision. The Union shall intervene in, and defend any administrative or court litigation concerning this provision.

ARTICLE VII

HOURS OF EMPLOYMENT

Section 7.01

a. Normal hours of employment shall not exceed eight (8) consecutive hours in any one day, nor forty (40) hours in any one week, or six (6) days in any one week.

Section 7.02

a. (1) Effective July 1, 2015 Officers assigned to Patrol Division shall work steady shifts of twelve hours (12) each, in accordance with the Pittman Schedule (as generally described on the Attached Exhibit B). The Pittman schedule will start on Monday. There will be 3 Patrol Shifts, starting at 6:00 am, 3:00 pm and 6:00 pm. The Department may revise existing starting times for shifts or establish new shifts under the Pittman schedule, provided the new shifts start on Monday and the adjusted starting times are within one (1) hour and are for legitimate service needs.

(2) Each office will be assigned a set shift, and will not be rotated through different shifts. The number of officers assigned to each shift will be at the City's discretion. For the initial assignment of members, and for reassignments as vacancies occur, consideration will be given to the shift preferences of individual members based on seniority to the extent practical, but the City will have the final authority to make such assignments to ensure the efficient and effective operation of the Department.

(3) As vacancies occur in the Criminal Investigations Bureau (CIB), consideration will be given to the shift preferences of individual detectives based on seniority to the extent practical, but the Police Director will have the final authority to make shift assignments to ensure the efficient and effective operation of the CIB. Changes in the CIB schedule may be made by mutual agreement of the parties.

b. Training will not be scheduled while members are on approved vacation. K-9 training will be scheduled during work hours; K-9 officers not working days will be assigned to day shift, if necessary, for four (4) consecutive days to complete training.

Members assigned to attend training seminars over a multiple day period, will be placed on a traditional steady-day schedule for the duration of such training.

Effective July 1, 2015, all training will be done during employee's scheduled work hours and

c. Effective with the implementation of the Pitman Schedule, One Hundred and Ten (110) hours of administrative time shall be given to each officer assigned to patrol, five (5) twelve (12) hour days off to be scheduled by the Department, and four (4) twelve (12) hour days to be scheduled in accordance with the Department's current vacation scheduling procedures, provided (1) no overtime is created by way of use of such days, and (2) these days may not be carried over. It is the intent of the parties that each officer will be scheduled to work, after the application of administrative time at total of 2080 per year.

d. Effective July 1, 2015, Non-Patrol officers shall work steady day shifts of eight and one-half (8 ½) hours each, Monday through Friday. Non-patrol officers on administrative shifts would have the 13 City approved holidays off and will have two (2) eight and one-half (8 ½) hour days off to be scheduled in accordance with the Department's current vacation scheduling procedures, provided (1) no overtime is created by way of use of such days, and (2) these days may not be carried over. In return for implementation of the new administrative schedule and the agreed upon adjustment to be made, the union will not support a grievance by one of its members or file a grievance challenging any discrepancy in the hours between those on the new administrative schedule and any other schedule.

Section 7.03

The TAC schedule will be a schedule of four (4) consecutive days or evenings of nine (9) and eight (8) hour shifts, and then four (4) days off followed by four (4) consecutive days or evenings of nine (9) and eight (8) hour shifts, and then two (2) days off, according to the terms and conditions set forth below:

Daytime tours will be Tuesday, Wednesday and Thursday from 0800 to 1700 hours and Friday from 0800 to 1600 hours. Day tours off will Saturday, Monday and Sunday. Evening tours will be Wednesday 1800 to 0200 and Thursday, Friday and Saturday from 1800 to 0300 hours. Evening tour days off are Sunday, Monday and Tuesday. TAC units will rotate each week between Day and Evening tours.

Section 7.04

The official of the Employer having charge of the Department of Police may, in the case of an emergency as defined by the applicable Statutes of the State of New Jersey, summon and keep on duty any and all members of the Department as such emergency shall require. In such event the official having such authority shall first make a formal declaration of the nature and extent of the emergency and all members of the Department thus summoned or kept on duty shall be entitled to receive overtime pay as hereinafter set forth for all time worked over the normal hours of employment as above defined.

Section 7.04

Officers who are temporarily rescheduled from the day or shift that they would usually work to another day or shift in the same week to cover a special event (e.g., parade, festival, race, etc.) will be paid time and a half (1 ½) for those rescheduled hours.

Section 7.05

The City agrees to provide compensation in accordance with the federal Fair Labor Standards Act to officers assigned to the K-9 Unit who must care for their assigned dogs outside normal work hours as follows:

1. The amount of time necessary for normal care of an assigned K-9 dog outside of normal work hours is agreed to be an average of one (1) hour and five (5) minutes per day, although the actual time may vary somewhat from day to day, and such time is deemed compensable by the City. Whenever special circumstances dictated (e.g. the need to take a sick dog to the veterinarian), a K-9 officer shall seek and receive permission from the shift commander, under procedures to be established by the City, to spend additional required time to handle the special situation. Such hours will also be compensable if and only if proper permission is received. No time will be compensable for any entire calendar day which an officer's dog spends in a kennel.
2. The PBA recognizes the fact that care of dogs is of a substantially different nature from the duties normally performed by a police officer, and agrees therefore that a lower hourly rate is appropriate. The hourly rate of pay to offers

assigned to the K-9 unit for all such care, maintenance and training shall be \$5.686 per hour. Because the compensable hours are for time worked in excess of the normal workweek, the overtime premium shall apply. Therefore, the actual rate of payment shall be \$8.36 per hour. In the absence of any specific agreement of the parties to the contrary, this hourly rate will be presume to increase by the same percentage as is subsequently negotiated for a police officer's base salary. Effective April 1, 2023 the rate shall be \$8.360 per hour.

3. The contractual agreement for the payment of a maintenance allowance of \$3.50 per day of officers assigned to the K-9 unit (Section 14.05 of the contract) shall remain in effect.
4. The City agrees to continue the existing practice of allowing 30 minutes during the normal work shift for an officer to clean his assigned K-9 vehicle for the next shift.
5. The services for care of an assigned dog covered by this Agreement are intended to include all feeding, exercising, grooming, transportation, training, cleaning of a kennel, and other related care and maintenance which must be performed by an officer outside of his normal work hours.

Section 7.06

The provision of Section II of Special Order 2007-14, dated October 20, 2007, pertaining to Meal Break Policy and Procedure and implemented by way of settlement of the PBA's grievance on meal periods, are hereby made permanent and are incorporated herein by reference.

Section 7.07

Officers on restricted duty will be assigned, based upon the nature of their restrictions and the operational needs of the Department, as follows:

- a. The officer's regular schedule, or
- b. An assignment on the 4 on 4 off work schedule that is consistent with the nature of the officer's restriction and the operational needs of the Department.

Section 7.08

The parties agree that the Pittman schedule will be adopted on a one (1) year trial basis. In the event that the parties agree that the Pittman schedule will not continue past its one (1) year trial period, the parties may agree that the Patrol Division will resume a four (4) on and four (40) off schedule with twelve (12) hour days, under the provisions of the prior agreement. In the event there is no agreement to abandon the Pittman schedule, it shall remain in effect.

ARTICLE VIII

COMPENSATION FOR OVERTIME

Section 8.01

If an employee shall be required, directed or authorized to work in excess of the number of consecutive hours in his regularly scheduled workday, he/she shall be paid overtime, at the rate of time and one-half (1 ½) of his/her regular pay rate (including benefits) for all such overtime.

If an employee is required, directed or authorized to work for more than 84 hours in a pay period (85 hours for employees who work eight and one half (8 ½) hour days), he/she shall be paid overtime for such excess time regardless of the number of days worked during that pay period, at the rate of time and one-half (1 ½) of his/her regular pay rate (including benefits) for all such overtime. Sick time will not be counted towards the 84 hours worked in any pay period, where the excess hours worked are the result of a voluntary overtime assignment.

Section 8.02

- a. No employee shall be entitled to be paid overtime unless such overtime is ordered, authorized or approved by his commanding officer, such order, authorization or approval to be recorded and maintained with the records of the Department in a form to be determined by the Police Director and approved by the Business Administrator of the Employer.
- b. Prior employees being mandated to work overtime, the City will offer overtime to qualified employees who have volunteered to work overtime, except in emergencies.

Section 8.03

It is recognized that employees may be required for the purpose of muster at the commencement of a tour to report in advance of the tour starting time and for the purpose of report making at the end of a tour to remain at the termination of a tour. In accordance with this recognition, no overtime shall be paid for a ten (10) minute period prior to the

commencement of a tour, or for a ten (10) minute period at the termination of a tour, but in the event an employee is required to report earlier than ten (10) minutes prior to the commencement of a tour or to remain beyond ten (10) minutes after the end of a tour, the employee shall be paid the overtime rate for all time worked in excess of, the work day of eight (8) consecutive hours.

Section 8.04

Overtime wages shall be paid at the next immediate pay period after such overtime is recorded.

Section 8.05

The method of recording hours of employment and the administration of the records and other data necessary to effectuate the purpose of Article VIII herein shall be established by the Police Director and the Business Administrator of the Employer

Section 8.06

Police Department officers who have earned compensatory time outstanding, and who submit requests to their supervisors five (5) days in advance, shall have the right to take off such accrued compensatory time, even if such time will result in the hiring, on an overtime basis, of substitute personnel, with the overall limitation, however, that such approvals will be limited in each calendar year to an amount which will not result in the expenditure of more than \$10,000 by the City in overtime payments for the hiring of necessary substitute personnel.

Section 8.07

Whenever an officer of the Police Department, as part of his duties shall be required to appear before any grand jury or at any Municipal, County, State Superior or State Supreme Court or any Federal Court proceeding, except as a witness in a civil action which does not arise from the performance of duty, the time during which he is so engaged shall be considered a time of assignment to, and performance of his regular duty and when any such appearance occurs outside his regular assigned duty hours the time so spent (from the time of reporting at the Court until the time excused) shall be included as part of his hours

of employment for that pay period and shall be deemed overtime. In addition to compensation for the actual time of reporting to County, State or Federal Court, and until the time excused for the said Courts as set forth in this section, a member of the Department of Police is entitled to an additional one (1) hour of compensation, representing ½ hour prior to an ½ hour subsequent to the actual court time for the purpose of checking in and picking up evidence and reports at the Trenton Police Headquarters.

A member who, as part of his duties, is required to appear in municipal court outside assigned duty hours will be paid ½ hour of overtime in addition to the time required for his appearance in order to permit the signing of complaints and any other necessary court papers.

Section 8.08

Whenever a member of the Department of Police, as part of his duties, shall be required to remain after his normal tour of duty in order to complete a report, maintain traffic control at the scene of an emergency or disaster or in order to complete an investigation or to perform any other duty as required by his commanding officer or by the Rules and Regulations of the Department of Police, any such additional time shall, if authorized, ordered or approved by such member's commanding officer, be included as part of his hours of employment for that pay period and shall be deemed overtime.

Section 8.09

Whenever a member of the Department of Police, as part of his duties, is summoned to return or report to duty other than for his normal tour of assignment, whether for emergency or otherwise, he shall be paid for not less than four (4) hours regardless of the actual time worked. In such event such four (4) hours (or more if he actually works longer) shall be included as part of his hours of employment for that pay period and shall be deemed overtime. The provision of this section shall not apply to a continuation of the regular tour of duty. This shall apply, however, when a member is called in earlier than his scheduled tour of duty to cover the period of shift overlap.

Section 8.10

Whenever a member of the Department of Police, as part of his duties is called to appear as a witness at a police disciplinary hearing, either by the City or the defendant, he shall be paid for not less than four (4) hours regardless of the actual time spent at such hearing, in a manner consistent with the general provisions of Section 8.09 above. Members called to appear as witnesses at police disciplinary hearings shall be paid so long as they appear at the hearing at the designated time and date, whether or not they are subpoenaed to appear and whether or not they actually testify. It is expressly understood, however, that whereas all witnesses shall be paid, no more than two (2) character witnesses will be paid with respect to any one set of disciplinary charges. Every effort shall be made by the defendant to notify the Police Director of the names of all witnesses to be called by the defense at least ten (10) working days prior to the date of any disciplinary hearing. If due to unforeseen circumstances, a witness shall be unknown to the defense in time to forward his name to the Police Director at least (10) working days prior to the hearing date, as soon as the witness' name shall become known to the defense, that name shall be forwarded to the Director. In any event, such witness shall not be precluded from appearing at the hearing for the defense and shall be paid in a manner similar to any other defense witnesses pursuant to the aforesaid provisions.

Section 8.11

Whenever a member of the Department of Police, as part of his duties, is called to appear as a defendant at a police disciplinary hearing, if said defendant is acquitted of charged relating to a particular date, he shall be paid for not less than four (4) hours regardless of the actual time spent at the hearing, in a manner consistent with the general provision of Section 8.09 above. Those defendants who are found guilty of one or more specifications under any particular charge are not to be paid for any time relating to any charge emanating from that particular date.

Every effort shall be made by both the City and the defendant to ensure that, whenever possible, disciplinary hearings are scheduled at a time when a defendant would normally be on duty.

ARTICLE IX

WAGES – DETECTIVE PAY – BREATHALYZER PAY

Section 9.01

The annual salaries for Police Officer covered by this agreement are set forth below.

For those hired before 1/1/2015

	2018	2019	2020	2021	2022	2023
Increase		2%	2%	2%	2%	2%
Step 6	\$93,144.67	\$95,007.56	\$96,907.71	\$98,845.87	\$100,822.79	\$102,839.24

For those hired after 1/1/2015

		2018	2019	2020	2021	2022	2023
Increase			2%	2%	2%	2%	2%
Academy	4 Months	\$36,904	\$37,642	\$38,395	\$39,163	\$39,946	\$40,745
Probation	8 Months	\$44,125	\$45,007	\$45,907	\$46,825	\$47,762	\$48,717
2nd Year	1 year	\$52,147	\$53,190	\$54,254	\$55,339	\$56,446	\$57,575
3rd Year	1 year	\$56,247	\$57,372	\$58,519	\$59,690	\$60,883	\$62,101
4th Year	1 year	\$60,347	\$61,554	\$62,785	\$64,040	\$65,321	\$66,628
5th Year	1 year	\$64,447	\$65,736	\$67,050	\$68,391	\$69,759	\$71,154
6th Year	1 year	\$68,546	\$69,917	\$71,316	\$72,742	\$74,197	\$75,681
7th Year	1 year	\$72,646	\$74,099	\$75,581	\$77,093	\$78,635	\$80,207
8th Year	1 year	\$76,746	\$78,281	\$79,847	\$81,444	\$83,072	\$84,734
9th Year	1 year	\$80,846	\$82,462	\$84,112	\$85,794	\$87,510	\$89,260
10th Year	1 year	\$84,946	\$86,645	\$88,378	\$90,145	\$91,948	\$93,787
11th Year	1 year	\$89,046	\$90,826	\$92,643	\$94,496	\$96,386	\$98,313
12th Year	1 year	\$93,145	\$95,008	\$96,908	\$98,847	\$100,824	\$102,840

- A. Newly hired officers shall be paid at the Academy Rate until Graduation from the Police Training Academy. They shall then be paid at the probationary rate for their 12-month probationary period. Upon successful completion of their probationary period, they shall be paid at Step Two for the remainder of their second year. Subsequent increments shall be given on the anniversary of their original appointment date. Academy time (four months) does not count toward increments, i.e., each step of the

salary scheduled shall be for twelve (12) months, with the date of completion of academy training serving as the increment date.

- B. Effective January 7, 2009, all newly hired police officers will be placed at the starting/academy rate, regardless of any prior City employment, and shall thereafter progress through the salary guide as provided herein.
- C. Effective upon the implementation of the Pittman Schedule, on or about July 1, 2015, the base salary schedule set forth above will be increased by a onetime 11.75% base salary adjustment. In the case of a transfer to or from the patrol division during the course of a year, administrative time, personal days and vacation days will be adjusted accordingly.

Section 9.02

All police officers assigned as detectives or plainclothesman shall receive a differential equal to an additional three percent (3%) of base salary per year in accordance with the following:

- a. All officers receiving detective pay as of May 1, 2001, will be “grandfathered” and will continue to receive detective pay.
- b. Officers assigned to detective work who were not receiving detective pay as of May 1, 2001, will receive detective pay prorated according to their actual performance of detective work.
- c. “Detective work” means plainclothes investigative work performed by officers assigned to the Investigative Services Division. It is understood that the work formerly performed by officers assigned to the “pro-active” unit falls within this definition of “detective work,” and that officers performing such work shall receive the detective stipend.

Section 9.03

There shall be annual payment of two hundred and fifty dollars (\$250) per officer to those persons who are certified breathalyzer experts.

Section 9.04

For employees hired before the date of execution of this Agreement, there shall be an annual payment of \$250 per officer to those persons who are certified radar operators or weapon repair specialists, provided that no officer receives payment for more than one specialty.

Section 9.05

Any police officer regularly assigned during a six (6) month period commencing either on January 1st or July 1st of any year to work a shift commencing on or after 3:00 pm, as provided in paragraph A, shall be entitled to a night shift differential of \$600 per year regardless of any adjustments in start times. It is understood that the number of such officers may increase or decrease depending upon the manpower requirements of the department. A determination of which officer shall be considered as regularly assigned to a shift commencing on or after 7:00 pm or 3:00 pm and thus entitled to the night shift differential is to be made semiannually and remuneration in the amount of \$300 shall be made at that time. Eligibility shall be determined as follows:

1. All officers regularly assigned (i.e. permanently assigned) to units which either work the night shift on a steady basis or rotate through the night shift on a regular basis will be paid the full \$300 differential if they actually work the night shift on this assignment for one (1) week or more during a given six (6) month period (beginning either January 1st or July 1st).
2. Any officer so assigned who is injured on duty during the six (6) month period commencing either on January 1st or July 1st of any given year shall continue to be entitled to the differential. Any officer otherwise incapacitated by a long-term illness during said six (6) month period shall not be entitled to the differential.
3. Officers who work in the Special Operation Unit (i.e. pro-active patrol) who do not routinely work the night shift, but are intermittently assigned to work that shift, shall be paid \$12 for each night worked on the night shift, but not to exceed \$300 for a six-month period.
4. Officers who are newly assigned as detective or plainclothesmen during a six-month period will agree to forego the night shift differential earned during that

period while previously working in a unit eligible for the differential, in consideration of the detective pay they will begin earning in the new assignment.

Any dispute as to whether or not an officer qualifies for the differential shall be processed through the contractual grievance and arbitration procedure contained herein.

ARTICLE X

HOLIDAYS

Section 10.01

The Association agrees to recognize paid holidays, such holidays as shall be designated for all employees of the City of Trenton as set forth in the appropriate ordinance or resolution adopted by the City for such purpose. In no event shall employees of the Police Department receive fewer than thirteen (13) paid holidays per year.

Section 10.02

It is recognized by both parties that, by reason of Department business, employees of the Department of Police are not able to be excused from working on thirteen (13) holidays which are enjoyed by other City employees. Therefore, in lieu of receiving days off on such holidays, each employee of the Department of Police will receive a full day's pay in addition to his regular salary. For this purpose, in the event that any of the aforesaid allowed paid holidays fall on a non-duty day, said holiday shall be deemed to have fallen on a regular working day.

Section 10.03

Holiday pay shall be paid as an addition to the base salary of all bargaining unit employees and shall be paid as part of the bi-weekly base salary, but shall be excluded from the calculation of contractual overtime, premium pay, differentials, degree money, and stipends. Only base salary and longevity shall be included in contractual overtime.

Section 10.04

Any police officer hired between January 1, 2003 and January 7, 2009, who was red-circled at a salary above the starting/academy rate, shall receive holiday pay.

ARTICLE XI

FUNERAL LEAVE

Section 11.01

Employees shall be entitled to up to a maximum of four (4) days funeral leave for spouse or child, parent, sibling, grandparents, grandchildren, mother-in-law, father-in-law, brothers/sisters-in-law, cousins of the first degree or any relative living in the employee's household. Such leave will not be chargeable.

Employees shall be entitled to one (1) duty day for aunt, uncle, niece, nephew or cousin beyond first degree. Such leave is not chargeable.

Section 11.02

The City agrees to reimburse a member's family or estate the amount of funeral expenses, not to exceed \$5,000, for any police officer who dies in the line of duty.

ARTICLE XII

PENSIONS

Section 12.01

Employer shall continue to provide contributions to employee's pension fund in accordance with the presently existing practice.

ARTICLE XIII

VACATIONS

Section 13.01

Effective July 1, 2015, employees on the Pittman schedule hired prior to December 23, 1998, shall receive the following vacations, with pay:

- a. During the first calendar year, or part thereof, of such employee's employment: one (1) day for each month or partial month of employment.
- b. After one (1) year of service but less than 5 years of service: 13.6 days.
- c. After five (5) years of service but less than 15 years of service: 19.2 days.
- d. After fifteen (15) years of service but less than 25 years of service: 20 days.
- e. After twenty-five (25) years of service: 20.8 days.

Effective July 1, 2015, employees on the Non-Patrol schedule hired after to December 23, 1998, shall receive the following vacations, with pay:

- a. During the first calendar year, or part thereof, of such employee's employment: one (1) day for each month or partial month of employment.
- b. After one (1) year of service but less than 5 years of service: 17 days.
- c. After five (5) years of service but less than 15 years of service: 24 days.
- d. After fifteen (15) years of service but less than 25 years of service: 25 days.
- e. After twenty-five (25) years of service: 26 days.

Section 13.02

Effective July 1, 2015, employees on the Pittman schedule hired prior to December 23, 1998, shall receive the following vacations, with pay:

- a. During the first calendar year, or part thereof, of such employee's employment: one (1) day for each month or partial month of employment.
- b. After one (1) year of service but less than 5 years of service: 12 days.
- c. After five (5) years of service but less than 15 years of service: 16 days.
- d. After fifteen (15) years of service but less than 25 years of service: 20 days.
- e. After twenty-five (25) years of service: 20.8 days.

Effective on July 1, 2015, employees on the Non-Patrol schedule hired after to December 23, 1998.

Shall receive the following vacations, with pay:

- a. During the first calendar year, or part thereof, of such employee's employment: one (1) day for each month or partial month of employment.
- b. After one (1) year of service but less than 5 years of service: 15 days.
- c. After five (5) years of service but less than 15 years of service: 20 days.
- d. After fifteen (15) years of service but less than 25 years of service: 25 days.
- e. After twenty-five (25) years of service: 26 days.

Section 13.03

Employees with more than one (1) year but less than fifteen (15) years of service will be required to designate at least two (2) full weeks of vacation in November for the following year and will be permitted to schedule their remaining allotment in single days or fractions thereof. Employees with fifteen or more years of service will be required to designate at least three full

weeks of vacation in November for the following year and will be permitted to schedule their remaining allotment in single days or fractions thereof. All vacation time requested in November shall be approved by January 1 of the following year.

Officers on the four on/four off schedule shall not be required to work the 4 calendar days before and the 4 calendar days following an approved vacation week.

Section 13.04

The City shall have the authority, based on prevailing practice, to approve or deny vacation requests by members so as to prevent the need for an inordinate amount of fill-in overtime.

Section 13.05

All vacation days are multiplied by 8 hours (not 10 hours) regardless of the individual's schedule. Vacation days will equal eight (8) hours for each individual regardless of participation on the 4 on 4 off schedule.

Schedule 13.06

All Department members shall be permitted to defer all vacation days excess of their scheduled required vacation to be utilized on personal vacation days (discretionary days) individually during the year.

The Police Director may permit additional discretionary vacation days when requested by a Bureau Command.

Department members desiring to utilize a discretionary vacation day by submitting a Vacation Application Form (PD-157) a minimum of forty-eight (48) hours in advance or in adherence to the notification and approval requirements established by the Bureau Command.

Recognize that all vacation requests shall be overtly approved, verbally or in writing, by the Bureau Command. A failure to respond or acknowledge by a Bureau Command shall not be construed as approval.

The use of “emergency” vacation days by Department members shall be permitted and granted in accordance with the criteria set forth in the existing collective bargaining agreement(s).

The total number of sworn personnel granted single discretionary vacation days shall not exceed seven (7) overtime positions per day department wide. The Patrol Bureau shall have five (5) overtime positions and other bureau/sections shall have the remaining two (2) overtime positions.

- a. The Police Director shall have the authority to suspend discretionary vacation days due to extenuating circumstances such as a public safety emergency or other unforeseen incidents.
- b. Single discretionary vacation days not causing overtime are not included in the maximum number seven (7).
- c. Discretionary days shall not be granted if it causes personnel levels to fall below set minimum manpower standards or severely effects the delivery of police services.

Bureau Commanders receiving requests for current year deferments, only, shall review and respond if approval(s) are granted. Bureau Commanders shall note the public safety needs and staffing level impact of granting or permitting individual discretionary vacation days.

If an assigned vacation bracket becomes available during the course of a calendar year, the affected Bureau Commander shall post a notice of the vacated vacation bracket. Officers shall have

fourteen (14) days to request assignment to the vacated bracket and it shall be awarded to the officer with the highest seniority.

Section 13.07

Upon retirement in accordance with the provisions of the New Jersey Police and Fire Retirement System, police officers shall receive either the number of vacation days or equivalent compensation which he would have received or earned had he worked the entire calendar year, minus any vacation days taken during the year of retirement; the resulting number of vacation days, however, being reduced pro rata by the percentage of the employee's previous year of employment spent on sick and non-service connected injury time, not including the first fifteen (15) days of sick time actually taken in said year. In event of death of the employee after twenty-five (25) years of service, said benefits will go to the designated survivor of the employee.

Section 13.08

Members of the Association shall be entitled to receive up to three (3) days paid leave per year for emergency family illness, which paid leave will be "advanced" and deducted from the vacation or annual leave of the officer in the following year.

Section 13.09

All employees covered by this agreement shall be entitled to all rights under federal and state statutes pertaining to military service leave.

ARTICLE XIV

LONGEVITY PAY – UNIFORM ALLOWANCE

Section 14.01

The Employer shall pay the following longevity plan, expressed as a percentage of base salary to employees hired before the date of this Agreement:

<u>Years of Continuous Service</u>	<u>Percentage of Base Salary</u>
5 years but less than 10 years	2.0%
10 years but less than 15 years	4.0%
15 years but less than 20 years	7.5%
20 years but less than 24 years	9.0%
24 years but less than 29 years	10.5%
29 or more years	11.0%

All employees hired on or after May 28, 2015 will not be eligible for longevity.

Section 14.02

Each employee shall qualify for the longevity increment on the date of the anniversary of his employment and such increment shall be due and payable in December in the year in which his anniversary date falls. Time spent on suspension without pay status upon finding of guilty after final adjudication, or on leave without pay, except with regard to leave for military service with the armed forces of the United States of America and scholarship leave, shall not be included in determining years of service. If after final adjudication, an employee is found not guilty of charges

specified against him, all time during such suspension shall be included in determining years of service.

Section 14.03

Each employee covered by this Agreement shall receive an annual clothing allowance of \$1,525.00 payable in semi-annual installments during the months of January and July of each year. Effective January 1, 2019 the clothing allowance will be \$1825.

Section 14.04

The existing payment to Police Officers assigned to the K-9 unit who are responsible for the care and maintenance of the canine assigned to them, which payment is for the purpose of, and in lieu of, reimbursing such employee for the expenses incurred in maintaining the City's canines on the home property of such employees, is \$3.50 per day.

Section 14.05

Annual payments for college credits will be made to all members of PBA who have attained college degrees. Payments will be based on the level of education attained as shown below:

Associate's degree:	\$200.00
Bachelor's degree:	\$400.00
Master's degree:	\$600.00

ARTICLE XV

HOSPITAL AND MEDICAL INSURANCE

Section 15.01

The employer shall provide, at no cost to the employee, full Blue Cross and Blue Shield insurance coverage, including Ride "J" benefits, and Major Medical for all employees covered by this Agreement and their families.

To the extent permitted by law, all police officers hired on or after January 1, 1996 shall be covered by a managed health care plan, which will provide benefits equal to or better than the current HMO managed health plan. It is understood that new employees shall have the option of selecting coverage from any managed health care program provided by the City. After five (5) years of being covered under the managed care plan, an employee will have the right to switch into the City's Blue Cross/Blue Shield Plan, if such Blue Cross/Blue Shield is still being provided. Any increase in the cost of the premiums as a result of switching into the Blue Cross/Blue Shield Program will be paid for by the employee. Any employee who due to special circumstances believes that she/he cannot obtain optimal medical treatment for himself or his dependents under the managed care program, may with approval of a special health benefits committee, to be established and consisting of at least one (1) PBA representative, one (1) management representative, and one (1) professional health care expert, switch into any other existing health care insurance program in effect and maintained by the City and have the premiums paid for by the City.

The parties agree that the City shall have the right to change the insurance carrier for health benefits provided:

- a. The change shall provide equivalent or better coverage at no additional cost to the employee except for HMO coverage.
- b. The new carrier shall be a “major” carrier.
- c. The City will first confer with union representative before any change in the current plan is implemented.
- d. Any disputes pertaining to the above including but not limited to the definition of a major carrier, and definition of “equivalent or better” health coverage, prior to implementation, shall be submitted to final and binding arbitration pursuant to Article XVII of the Agreement.
- e. The burden of proof regarding whether an alternate plan is equivalent or better and a “major” carrier is on the City.

The City maintains that, by virtue of written notice to the PBA on 10/30/91, this section of the contract now should read in full as follows:

“The employer shall provide, at no cost to the employee, full health insurance coverage with benefits equivalent or better to the coverage in effect as of 12/31/91, except that the employee shall have the option to select a Health Maintenance Organization (HMO) plan and pay the difference in cost.”

The PBA maintains, to the contrary, that the earlier provision was “evergreen”, and remains in the contract.

Section 15.02

Upon retirement, the City will continue to provide paid health benefits for all eligible employees and their eligible dependents. To be eligible, an employee must meet the three (3) requirements listed below:

1. Have had twenty-five (25) years of credited service in the New Jersey pension system or must be retired on an approved disability. In disability cases, the employee will be required to pay a premium until the disability has been approved by the Division of Pensions.
2. Be a member of the health benefits plan during the period immediately preceding retirement. If the employee retains an HMO plan, the retiree will be required to pay any excess amount over the cost of the traditional plan.
3. The employee must sign the appropriate forms indicating the desire to continue coverage.

Section 15.03

- a. The City shall implement the State of New Jersey Prescription Drug Plan for police officers. Retirees who are eligible to receive prescription drug insurance coverage at the City's expense shall be provided such coverage under the prescription drug component of their selected State of New Jersey State Health Benefit Program health insurance plan. The City shall reimburse any co-payments in excess of \$5.00 per brand-name prescription and \$0.00 per generic prescription.
- b. Effective January 1, 2009, a three-tier prescription drug co-payment schedule will take effect as set forth herein.
 - i. For prescription drugs purchased at retail, the copayment for covered employees shall be \$10 per purchase of generic drugs, \$20

per purchase of preferred-category drugs, and \$35 per purchase of brand-name drugs.

- ii. For prescription drugs purchased on 90-day mail order, the copayment for covered employees shall be \$3 per purchase of generic drugs, \$10 per purchase of preferred-category drugs, and \$15 per purchase of brand-name drugs.

Section 15.04

The City shall continue to provide the same dental and optical insurance coverage, which shall be made available to all other City employees. The reimbursement for an employee's cost for prescription lenses shall be \$55 for single vision lenses, and \$60 for bifocals.

Section 15.05

This contract shall not be deemed to reduce the benefits to which a retiring employee may be statutorily entitled pursuant to the Early Retirement Incentive program offered to members of the Police and Firemen's Retirement System.

Section 15.06 Co-pay of medical insurance:

- a. Effective January 1, 2009, covered employees shall contribute \$19.00 per pay toward the cost of premiums for single medical coverage, \$23.00 per pay toward the cost of premiums for all other medical coverages.
- b. Effective January 1, 2010, covered employees shall contribute \$21.00 per pay towards the cost of premiums for single medical coverage, \$25.00 per pay toward the cost of premiums for all other medical coverages.

ARTICLE XVI
GRIEVANCE PROCEDURE

Section 16.01

In the event that any dispute, difference or grievance shall arise between the Employer and any employee or between the Employer and the Association regarding the interpretation and application of this agreement, or regarding conditions of employment (including, but not limited to, the disciplining or discharge of employees), the parties involved in such dispute, difference or grievance shall first make a bona fide attempt at a settlement hereof by the following procedure:

- a. Complaints may be initiated by an individual employee to the Police Director or his designee. If the complaint is not adjusted satisfactory at this stage and the employee wishes to enter a grievance, it shall be presented by the authorized Association representative.
- b. When the Association wishes to present a grievance for itself or for an employee or groups of employees for settlement, such grievance shall be presented as follows:

Step 1 The president of the Association or his duly authorized and designated representative shall present and discuss the grievance or grievances orally with the Police Director or his duly designated representative. The Police Director shall answer the grievance orally within five (5) days.

Step 2 If the grievance is not resolved at Step 1, or no answer has been received by the Association within the time set forth in Step 1, the grievance may be presented in writing to the Business Administrator. The final decision of the Business Administrator shall be given to the Association in writing within fourteen (14) days after the receipt of the grievance by the Business

Administrator. Discussions may ensue in the interim period at the request of either party or the Business Administrator.

- c. If the grievance has not been settled by the parties at Step 2 of the Grievance Procedure, or if no answer in writing by the Business Administrator has been received by the Association within the time provided in Step 2, the Association may demand arbitration of the grievance in accordance with Article XVII – Arbitration, hereinafter set forth.

Section 16.02

Nothing herein is intended to deny an employee the right of appeal as expressly granted in the Revised Civil Service Rules for the State of New Jersey.

Section 16.03

Nothing herein shall prevent any employee from processing his own grievance, provided the Grievance Committee may be present.

ARTICLE XVII

ARBITRATION

Section 17.01

Any grievance or other matter in dispute involving the interpretation or application or the provisions of this agreement, not settled by the Grievance Procedure as herein provided, may be referred to an arbitrator as hereinafter provided.

Section 17.02

Either party may institute arbitration proceedings when the Grievance Procedure has been exhausted by written demand upon the other party specifying the nature of the unsettled grievance or other matter in dispute. Within fifteen (15) days following presentation of such demand, the party demanding arbitration shall request the New Jersey Public Employment Relations Commission to appoint an arbitrator to hear the arbitration in the manner set forth in Rule 19:12-14, Rules and Regulations and Statement of Procedure of the New Jersey Public Employment Relations Commission.

Section 17.03

The decision of the Arbitrator shall be in writing and shall include the reasons for each finding and conclusion.

Section 17.04

The decisions of the Arbitrator shall be final and binding on the Association and the Employer.

Section 17.05

Where an employee has exercised his right of appeal as expressly granted in the Revised Civil Service Rules or Statutes of New Jersey, there shall be no right to arbitration under the provisions of this article.

Section 17.06

In the event of a change in the law governing the New Jersey Public Employment Relations Commission or its rules and regulations which would in any way affect the method of selection of an arbitrator then, in the alternative, the party demanding the arbitration shall request the American Arbitration Association to submit a list on nine (9) arbitrators from which the parties may make a selection of the arbitrator. If the parties fail to agree on the selection of the arbitrator from the list, each party shall alternately strike one (1) name until but one (1) name remains and that party shall be the arbitrator of the issue or issues to be arbitrated. The cost of the arbitrator's services, if any shall be shared by both parties and each of the parties shall bear its own costs.

Section 17.07

Article XVI and Article XVII, relating to grievance procedure and arbitration, shall apply only to the settlement of disputes, differences or grievances between the Employer and any employee or between the Employer and the Association set forth in Section 16.01 herein. Nothing herein shall require either party to submit fiscal matters such as wages, hours or benefits to interest arbitration.

ARTICLE XVIII

STRIKES AND OTHER JOB ACTION

Section 18.0

The employees recognize and acknowledge the existing state of the law in the State of New Jersey relating to the rights of public employees to strike or to take any other concerted action designed to illegally obstruct or disable the proper functions of the City, and employees agree to be bound by all such laws, as they now exist, or as they may be modified or amended, from time to time.

ARTICLE XIX

MANAGEMENT OF CITY'S AFFAIRS

Section 19.01

The employee recognizes that areas of responsibility must be reserved to the City to serve the public effectively. Therefore, the right to manage the affairs of the City and to direct the working forces and operations of the City, subject to the limitations of this agreement, is vested and retained by the City exclusively.

The management and the conduct of the business of the City and the direction of its working force are the rights of the Employer. The employer shall have the right, subject to the terms herein contained, to hire employees, to classify, assign, transfer and promote them, to discipline or discharge them for cause, and in general maintain discipline, order and efficiency consistent with the Rules and Regulations of the Civil Service Commission. The Employer reserves the right to publish reasonable rules and regulations from time to time as it may be necessary and proper for the conduct of its business, provided that the same are consistent with the terms of this agreement, and provided further that such rules and regulations are subject to the grievance and arbitration provisions of this agreement.

Section 19.02

The PBA acknowledges the right of the City to, without prior negotiations, institute layoffs and will not interfere in any way with the layoffs of employees in accordance with civil service law and regulations.

The City agrees that the principles of seniority shall apply to employees covered by this Agreement; layoffs shall be inverse order of seniority, and employees shall be reinstated according to seniority.

Section 19.03

The PBA shall cooperate with the City in implementing a full community policing strategy within the existing four consecutive days/nights on, four consecutive days/nights off, ten hour per day work schedule.

Section 19.04

The PBA shall cooperate with management's decision to implement one-man patrol cars where the City determines one-man patrol cars to be appropriate.

ARTICLE XX

ADMINISTRATIVE CODE, ADMINISTRATIVE MANUAL, AND RULES AND REGULATIONS

Section 20.01

The employee hereby recognizes and agrees that the administrative code, administrative manual of the Employer and the rules and regulations of the Police Department of the Employer continue in full force and effect with respect to the employees as they presently exist, including any amendments thereto, and are operative as to the employees, unless specific provisions are set forth herein in contravention.

ARTICLE XXI

APPLICABLE LAWS

Section 21.01

The provisions of this agreement shall be subject to and shall not annual or modify existing applicable provisions of Federal, State and Local laws and ordinances or any properly enacted amendments, additions or deletions thereto, except as specifically permitted thereby.

ARTICLE XXII

NO WAIVER

Section 22.01

Except as otherwise provided in this Agreement, the failure to enforce any provision of this Agreement shall not be deemed a waiver thereof.

This Agreement is not intended and shall not be construed as a waiver of any right or benefit to which the Employees herein are entitled by law.

ARTICLE XXIII

TERM OF CONTRACT

Section 23.01

This agreement shall be effective as of the 1st day of January 2019, and shall remain in full force and effect until the 31st day of December 2023. This agreement shall be deemed a continuing agreement, automatically renewing itself from year to year thereafter except that either party shall have the right of renegotiations on such requested-modifications within fifteen (15) days after the receipt by either party of such proposals by the other party, and will continue such negotiations in good faith until a renewal of the within agreement, together with all agreed upon modifications, has been arrived at by agreement.

ARTICLE XXIV

MISCELLANEOUS

Section 24.01

Police show – In recognition of the substantial contribution of the matters set forth therein in which event the provisions of this agreement shall prevail. To Police Community relations resulting from the PBA's annual "Anything May Happen" show, the City hereby agrees to continue the past practice of allowing association members to participate in rehearsals and performances of this show while on duty, provided, however, that on-duty officers will remain in service at all times, will respond to any and all calls for service, and will not be so assigned (to rehearsals or performances) should such assignment result in reducing the efficiency of the Police Department. It is expressly understood, furthermore, that such on-duty assignment will be made only if such assignment will not result in, or cause the need for, additional manpower on an overtime or straight time basis.

Section 24.02

City and Union agree to print up a contract book for the PBA. The City will pay for the entire cost of printing of the booklet.

Section 24.03

Disciplinary action comprised of multiple charges which are totally unrelated either as to date, as to a continuing type of disciplinary problem or in some other manner to one another as pertains to a police officer will not be heard in one hearing. This will not, however, preclude the City from scheduling more than one hearing for a particular police officer in one day, or scheduling disciplinary action involving related charges against more than one officer in one hearing.

Section 24.04

The Union and City agree to establish a safety committee comprised of appointees from both parties to review health and safety conditions and make recommendations for improving such conditions.

Section 24.05

In case of a snow day, the officer must report to work in order to earn a comp day.

Section 24.06

The Union and City agree that the twenty-six (26) pay period system shall change to a twenty-four (24) pay period system to be implemented once the City has the consent of all collective bargaining units.

IN WITNESS WHEREOF, the undersigned have affixed their signatures on March ____, 2023.

CITY OF TRENTON:

**NEW JERSEY DEPARTMENT OF
COMMUNITY AFFAIRS**

By: _____

Reed Gusciora

Mayor

By: _____

PBA LOCAL #11

By: _____

Michael Schiaretta

PBA President